



Reserve Forces Act 1982

1982 CHAPTER 14

An Act to change the name of the Territorial and Army Volunteer Reserve and to amend the Reserve Forces Act 1980.
[7th April 1982]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Change of
name of
Territorial
and Army
Volunteer
Reserve.
1980 c. 9.

1.—(1) The Territorial and Army Volunteer Reserve shall, instead of being so known, be known as the Territorial Army.

(2) Accordingly—

- (a) in subsection (1) of section 5 of the Reserve Forces Act 1980 (under which Her Majesty may maintain the Territorial and Army Volunteer Reserve), for the words from “maintain” onwards there shall be substituted the words “maintain the Territorial Army”, and in subsection (1) of section 156 of that Act (interpretation) the definition of “Territorial Army” shall be omitted; and
- (b) a reference to the Territorial and Army Volunteer Reserve in any other Act or in any instrument shall be construed, so far as may be necessary in consequence of the change of name made by subsection (1) above, as a reference to the Territorial Army.

(3) In sub-paragraph (2) of paragraph 5 of Schedule 8 to the said Act of 1980 (which, among other things, provides that references to the Territorial Army shall continue to be construed as references to the Territorial and Army Volunteer Reserve) the words "Territorial Army and the", "respectively", "the Territorial and Army Volunteer Reserve and" and "army or" shall be omitted.

2.—(1) Paragraph (b) of subsection (1) of section 98 of the Reserve Forces Act 1980 (which requires a man of the Territorial Army or Royal Auxiliary Air Force to pay a levy if he is discharged before the end of his term) is hereby repealed; and, accordingly, in subsection (2) of that section (under which all or any of the conditions mentioned in the said subsection (1) may be dispensed with), for the words "all or any" there shall be substituted the words "one or both".

Miscellaneous
amendments of
the Reserve
Forces Act
1980.
1980 c. 9.

(2) In subsection (1) of section 150 of the said Act of 1980 (which provides that the Secretary of State may make regulations with respect to the matters falling to be prescribed under the provisions of that Act listed in that subsection), after paragraph (d) there shall be inserted the following paragraph:—

"(dd) section 36(1),".

(3) Section 153 of the said Act of 1980 (which makes provision with respect to provisions of that Act deriving from Acts passed before the commencement of the Statutory Instruments Act 1946) is hereby repealed.

1946 c. 36.

(4) In paragraph 1 of Schedule 6 to the said Act of 1980 (general provisions as to evidence in proceedings under Parts IV and V of that Act) after sub-paragraph (7) there shall be inserted the following sub-paragraph:—

"(7A) Sections 198A and 198B of the Army Act 1955 or, as the case requires, of the Air Force Act 1955 (which, as inserted by the Armed Forces Act 1981, make provision with respect to evidence derived from computer records) shall apply, with the omission in each case of subsection (7) of section 198A, in relation to proceedings under Part IV or Part V of this Act as they apply in relation to the proceedings mentioned in those sections."

(5) Subsection (4) above shall not affect any proceedings begun before whichever is the later of—

- (a) the expiration of the period of one month beginning with the passing of this Act; and
- (b) the coming into force of section 9 of the Armed Forces Act 1981 (which gives effect to the provisions applied by 1981 c. 55. virtue of that subsection).

Citation and
extent.

3.—(1) This Act may be cited as the Reserve Forces Act 1982.

(2) This Act extends to Northern Ireland.

1980 c. 9.

(3) Section 158(3) of the Reserve Forces Act 1980 (under which provisions of that Act may be extended to the Isle of Man) shall apply in relation to the provisions of this Act as it applies in relation to the provisions of that Act; but, save as aforesaid, nothing in this Act shall affect the Reserve Forces Act 1980 in its application to the Isle of Man.